

Compliant Defense Services Support Agreement

Parties and Recitals

This Compliant Defense Services Support Agreement is entered into by Garuda Defense Services Authority, a fictional Indonesian defense-services buyer, and Archipelago Secure Systems Ltd., a fictional supplier.

The parties intend this synthetic agreement to represent a clean baseline for managed support, maintenance, and secure data handling services in a regulated defense operating environment.

Section 1. Definitions

Confidential Information means non-public technical, operational, procurement, security, and commercial information disclosed in connection with the services.

Customer Data means all information, records, telemetry, logs, service tickets, and support materials submitted by Buyer or generated from Buyer's systems.

Sensitive Data means Customer Data designated by Buyer as sensitive, restricted, mission-related, export-controlled, personal, or security-relevant.

Section 2. Scope of Services

Supplier shall provide managed support, incident triage, configuration assistance, maintenance coordination, release support, and technical reporting for the platforms listed in Schedule A.

Supplier shall perform the services using trained personnel, documented procedures, controlled tooling, and the service levels agreed by the parties.

Section 6. Data Handling

6.1 Supplier shall process Customer Data only within approved client-controlled systems and only as necessary to perform the services under Buyer's documented instructions.

6.2 Supplier shall not use external or public cloud services for Customer Data unless Buyer gives prior written consent in a signed amendment.

6.3 Supplier shall maintain a current record of processing activities covering location, retention, return, and verified deletion of Customer Data and shall make that record available to Buyer upon request.

6.4 Supplier shall not transfer Customer Data outside the approved operating region without Buyer's prior written consent.

Section 8. Security

8.1 Supplier shall maintain administrative, technical, and physical safeguards consistent with industry standards to protect Customer Data.

8.2 Supplier shall notify Buyer within 24 hours after confirming any security incident affecting Customer Data or service environments.

8.3 Supplier shall maintain documented access control, encryption, logging, and vulnerability management procedures for the services.

Section 9. Confidentiality

9.1 Each party shall protect the other party's Confidential Information using at least reasonable care and no less than the care used for its own comparable information.

9.2 The Supplier may disclose Confidential Information to its Affiliates only on a need-to-know basis and only where such Affiliates are bound by equivalent confidentiality obligations.

9.3 Confidential Information shall not be disclosed publicly or to unrelated third parties except with Buyer's prior written consent or as required by law.

Section 10. Audit and Inspection

10.1 Customer has an audit right to inspect Supplier's records, controls, facilities, and systems relevant to the services upon reasonable notice.

10.2 Supplier shall provide independent evidence, including third-party assessment reports, control test results, and remediation records, when reasonably requested by Customer.

Section 11. Subcontractors

11.1 The Supplier may grant a subcontractor access to Sensitive Data only with Buyer's prior written approval.

11.2 Any subcontractor engaged by Supplier shall be bound by security, confidentiality, audit, and data-protection obligations no less protective than those in this Agreement.

11.3 Supplier remains fully responsible for subcontractor acts and omissions as if they were Supplier's own acts and omissions.

Section 13. Intellectual Property

13.1 The Buyer owns all bespoke Deliverables created under this Agreement. The Supplier retains ownership of pre-existing Background IP and grants the Buyer a perpetual, irrevocable license to use Background IP embedded in the Deliverables.

Section 15. Liability

15.1 Each party's aggregate liability shall not exceed the fees paid in the preceding twelve months.

15.2 The liability cap does not apply to confidentiality breaches, security or data incidents, intellectual property infringement, fraud, or wilful misconduct.

15.3 Supplier shall indemnify Buyer against third-party claims that a Deliverable infringes a third party's intellectual property rights.

Section 17. Termination

17.1 Either party may terminate this Agreement for uncured material breach upon thirty days' written notice.

17.2 Upon termination for material breach or a security incident, the Supplier shall return or verifiably delete all Customer Data and provide reasonable transition assistance.

Section 18. General

This synthetic agreement is governed by the law selected in Schedule C. Notices must be in writing. Amendments require signed written agreement by authorized representatives of both parties.